

Brijpal @ Brijpal Singh v. State of U.P.

Allahabad High Court · Division Bench · 15 October 2025 · Writ-C No. 7456 of 2025 · **Writ disposed of; petitioner permitted to represent under Clause 6.14 for instalments.**

HEADNOTE

A consumer who admitted a bill of Rs. 1,45,166/- and sought instalments, restoration, and non-collection of penalty was relegated to a representation before the Executive Engineer, to be decided in light of Clause 6.14 of the Electricity Supply Code, 2005, with an expectation of a sympathetic view for instalment facility.

FACTUAL SUMMARY

The petitioner was billed Rs. 1,45,166/- for electricity, admitted the liability, and sought a writ of mandamus directing the Madhyanchal Vidyut Vitran Nigam authorities at Shahjahanpur to accept the dues in easy instalments, restore a disconnected connection, and not collect penalty for non-payment, on the ground that he could not pay the amount in one go. Counsel for the respondents pointed to Clause 6.14 of the Electricity Supply Code, 2005 as providing for instalment payment of electricity dues.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment of electricity dues

HOLDING

Where the consumer admitted a bill of Rs. 1,45,166/- and sought instalments for financial inability to pay in one go, the writ was disposed of by permitting a representation to the Executive Engineer, who shall consider and decide it in light of Clause 6.14 of the Electricity Supply Code, 2005 within two weeks, and is expected to take a sympathetic view and grant instalment facility. ¶ 5-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — RESTORATION OF THE DISCONNECTED SUPPLY

Prayed for in the writ; the operative direction is only consideration of a Clause 6.14 representation for instalments. ¶ 5

NOT DECIDED — NON-COLLECTION OF PENALTY FOR NON-PAYMENT OF DUES

Prayed for; not addressed. ¶ 5